

Snandy vs (Disposed Of) on 4 August, 2015

Author: Harish Tandon

Bench: Harish Tandon

04.08.2015 CO 2795 of 2015 Item No. SL-35 Dr. Avijit Bose snandy Vs. (DISPOSED OF) Nabaneeta @ Nabanita Bose (nee Sarkar) Mr. Asit Kumar Chattacharjee, Advocate Mr. Subrata Ghosh, Advocate Mr. Tanmoy Chowdhury, Advocatefor the Petitioner On the application of the wife, the Matrimonial Suit is stayed pending disposal of an application under Section 24 of the Hindu Marriage Act.

A Coordinate Bench in the case of Tripti Mondal Vs. Manindra Nath Mondal reported in (2006) 2 WBLR (Cal) 132 held:-

Paragraph 5 - On a bare reading of the said Section it appears that the said provision as contained therein is made by the legislature, being a social welfare legislation, with the pious intent that if a litigant is not sufficiently affluent to contest any litigation of such type of matrimonial proceeding, he or she as the case may be, may get a chance to contest the matter upon being granted such costs of litigation by the Court in terms of the application as to be filed under Section 24 of the said Act. Hence if the proceeding is allowed to continue keeping the application under Section 24 of the Hindu Marriage Act pending or otherwise till finality of the said application under Section 24, the main proceeding is not stayed, the question would arise as to whether the person concerned who is economically weak and has no sufficient fund to contest the matter would be deprived from his/her right to defend the case. The statute in unequivocal term has stipulated that when any of the litigating parties either wife or the husband if set up a case of having no independent income sufficient for support and necessary expenses of the proceeding, the application to be filed and the Court will decide the same. From the very language it appears that the purpose of Section 24 of the Hindu Marriage Act to grant necessary relief for payment of litigation costs is to provide the benefit to the concerned party who is filing the application to contest the matter properly by allowing such litigation costs. On a bare reading of the statutory provision, this Court is of the view that the application under Section 24 of the Hindu Marriage Act is required to be adjudicated upon forthwith as soon as it to be filed keeping aside the main matter for adjudication and for that purpose if any application for stay of the proceeding is filed, the Court cannot refuse to stay the main proceeding due to reason that if such stay is not granted, the party would be deprived of from contesting the matter by defending the case on its merit only for the lack of monetary capacity to contest the case. The right to defend the case having been recognized in terms of Section 24 of the Hindu Marriage Act and thereby relief having been provided in the nature of monetary relief by way of grant of litigation costs and in the event the application under Section 24 of the said Act is kept pending

and the Matrimonial Suit proceeds, it will cause total breach of Section 24 of the said Act. Considering the jurisprudential concept of the enactment of statutory provision under Section 24 of the said Act, this Court is of the view that the impugned order passed by the learned Court below rejecting the prayer to stay matrimonial proceeding till finality of the application under Section 24 of the Hindu Marriage Act practically has caused a total breach of the said Section 24 of the Hindu Marriage Act and thereby the petitioner has been denied to contest the matter. In that view, the impugned order suffers from strong perversity and accordingly it is set aside and quashed.

This Court does not feel that a dissenting view is to be taken so as to refer the instant revisional application to the Hon'ble the Chief Justice for constituting a larger Bench for the reason that if the application under Section 24, itself is disposed of expeditiously, it would impart justice to the litigants.

Without entering into the legal aspect whether the matrimonial suit should remain stayed till the disposal of Section 24 application, this Court do not want to enter into such arena at this stage.

The learned Advocate for the petitioner submits that an application for amendment of the application has already been allowed but the copy of the said amended application has not been served upon him.

The trial Court is directed to see that the amended application under Section 24 of the Hindu Marriage Act is served on the petitioner within a fortnight from the date of communication of this order.

The petitioner is permitted to file objection to the amended application within three weeks therefrom.

The trial Court is requested to make efforts to dispose of the Section 24 proceeding as expeditiously as possible within three weeks from the date of expiration of exchange of affidavits.

With these observations, the revisional application is disposed of. No order as to costs.

(Harish Tandon, J.)